

An Act

ENROLLED HOUSE
BILL NO. 3764

By: Turner and Wolfley of the
House

and

Hamilton and Burns of the
Senate

An Act relating to gang-related offenses; amending 21 O.S. 2021, Section 856.3, as last amended by Section 25 of Enrolled Senate Bill No. 1627 of the 2nd Session of the 60th Oklahoma Legislature, which relates to condition of membership; criminalizing certain acts related to foreign terrorist organizations; providing for penalties; authorizing a court to take judicial notice of certain designation; updating statutory language; and providing an effective date.

SUBJECT: Gang-related offenses

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 856.3, as last amended by Section 25 of Enrolled Senate Bill No. 1627 of the 2nd Session of the 60th Oklahoma Legislature, is amended to read as follows:

Section 856.3. A. Any person who attempts or commits a gang-related offense as a condition of membership in a criminal street gang or while in association with any criminal street gang or gang member shall be guilty of a Class B5 felony offense punishable upon conviction by imprisonment in the custody of the Department of Corrections for a term of five (5) years, which shall be in addition to any other penalty imposed. For purposes of this ~~section~~ subsection, "criminal street gang" is defined by subsection F of Section 856 of this title and "gang-related offense" means those offenses enumerated in subsection F of Section 856 of this title.

B. Any person who attempts or commits a gang-related offense as a condition of membership of, while in association with, acting on behalf of, or knowingly supporting any foreign terrorist organization shall be guilty of a Class B5 felony offense punishable upon conviction by imprisonment in the custody of the Department of Corrections for a term of five (5) years, which shall be in addition to any other penalty imposed. For purposes of this subsection, "foreign terrorist organization" means any organization designated by the United States Department of State as such pursuant to 8 U.S.C., Section 1189. The court may take judicial notice of such designation as published in the Federal Register or maintained by the United States Department of State.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____